

Addendum to Contract for Residential Sale and Purchase



1 If initialed by all parties, the terms below will be incorporated into the Contract for Residential Sale and Purchase
2* between _____ ("Seller")
3* and _____ ("Buyer")
4* concerning the Property described as _____
5* _____

6* () () - () () **W. Rentals: (Check whichever applies)**

- 7* 1. ☐ **Pre-Occupancy Agreement:** If **Buyer** occupies the Property before Closing, **Buyer** will accept the Property in
8 its existing condition on the date of occupancy, relieving **Seller** of any additional repair or treatment obligations,
9 and will maintain the Property and assume all liability for and risk of loss to it from the date of occupancy.
10 Effective on the date of occupancy, this clause replaces Paragraph 9 of this Contract. **Seller** and **Buyer** will sign
11 and deliver a written lease containing mutually agreeable terms concerning **Buyer's** pre-closing occupancy of the
12 Property and prepared at **Buyer's** expense.
- 13* 2. ☐ **Post-Occupancy Agreement:** **Seller** and **Buyer** will sign and deliver a written lease, containing mutually
14 agreeable terms concerning **Seller's** occupancy of the Property after Closing and prepared at **Seller's** expense.
- 15* 3. ☐ **Existing Tenant:** The Property is currently used as a rental property, and **Buyer's** rights will be subject to
16* those of existing tenants. **Seller** will, within _____ days after Effective Date and at **Seller's** expense, deliver to
17* **Buyer** current copies of the rent roll; leases; income and expense statements for the period January 1, _____,
18* through December 31, _____, as evidence that the Property generated income of \$ _____ against
19* expenses of \$ _____; and agreements with third parties that will remain in effect after Closing.
20* **Buyer** may terminate this Contract by written notice to **Seller** within _____ days after Effective Date if the
21 statements differ materially from **Seller's** representations. If **Buyer** fails to timely provide written notice of
22 cancellation, this contingency will be waived; and **Buyer** will continue with this Contract. **Seller** will assign
23 leases and rental agreements and transfer deposits and advance rents to **Buyer** at Closing.
- 24* 4. ☐ **Vacating Tenant:** The Property is currently used as a rental property. **Seller** will ensure that the existing tenant
25 vacates the Property before the time agreed upon for the Walk-Through Inspection.